

TENTATIVE RULING

Case: **Barreras v. Jessee Heating & Air Conditioning**
Case No. CV2024-2137

Hearing Date: September 24, 2026 Department Fourteen 9:00 a.m.

Motion for assignment order:

Plaintiff Raymond Barreras' ("plaintiff") motion for assignment order is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 708.510, 708.520.) The Court finds that plaintiff's request for assignment rights to payment due or to become due to defendant Jessee Heating & Air Conditioning's ("defendant") accounts receivable is overly broad based on the circumstances presented. (Code Civ. Proc., § 708.510, subds. (a), (c), (d); Rodriguez Decl., ¶¶ 6-8; Gray Decl., ¶¶ 4-14.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion to compel compliance with settlement agreement and judgment:

Plaintiff's motion to compel compliance with settlement agreement and judgment is **DENIED**. The Court finds that plaintiff fails to provide sufficient legal authority or argument in support of this motion. (Cal. Rules of Court, rule 3.1113(b); see *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73–74, citing *Sprague v. Equifax, Inc.* (1985) 166 Cal.App.3d 1012, 1050 [every brief should contain a legal argument with citation of authorities on the points made and if none is furnished on a particular point, the court may treat it as waived and pass it without consideration].)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **In re Kary**
Case No. PR2026-0111
Hearing Date: **September 24, 2026** **Department Thirteen** **9:00 a.m.**

Petitioner Monika Frey's unopposed motion for entry of amended order determining succession of personal residence is **GRANTED**. (Code Civ. Proc., § 473.) Pursuant to Code of Civil Procedure section 473(d), the Court finds a sufficient basis to correct petitioner's clerical error. (See Motion, pp. 1-2.)

Petitioner is **DIRECTED** to submit an amended order determining succession to primary residence (Judicial Council form DE-315) by **October 2, 2026**, for the Court's review and execution.

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately.